

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
COUNTY CIVIL

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2022-CC-

IRIS WILLIAMS, JEANIE GRACE DICICCO,
HOWARD VINCENT BLACKWELL
and ANY UNKNOWN TENANT(s),
Defendants.

**COMPLAINT SEEKING POSSESSION OF RESIDENTIAL PREMISES, DAMAGES
AND LIEN FORECLOSURE**

Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, sues the Defendant(s), IRIS WILLIAMS, JEANIE GRACE DICICCO, HOWARD VINCENT BLACKWELL, and any UNKNOWN TENANT(s), in possession of certain premises more fully described below, and alleges:

COUNT I
ACTION FOR POSSESSION

1. This is an action for removal of mobile home park lot tenants and possession of real property in Manatee County, Florida, as authorized by Section 723.061(1)(C)2 of Florida Statutes.
2. Plaintiff is a Foreign Limited Liability Company owning and operating a mobile home park located in Manatee County, Florida.
3. Plaintiff owns the real property located at 900 9th Avenue East, Lot #155, Palmetto, Manatee County, Florida 34221, an over 55 mobile home park.
4. Defendant, IRIS WILLIAMS, natural person, entered into a rental agreement to reside at 900 9th Avenue East, Lot #155, Palmetto, FL 34221 owned by COLONIAL MANOR MHC HOLDINGS, LLC, and is the owner of the mobile home on said premises.

LAW OFFICE OF WILLIAM C. PRICE, III, P.A.

5. In accepting the rental agreement, Defendant IRIS WILLIAMS, accepted and agreed to be bound by the Prospectus and Rules and Regulations of COLONIAL MANOR MHC HOLDINGS, LLC.

6. Defendant, JEANIE GRACE DICICCO, entered into a rental agreement to reside at 900 9th Avenue East, Lot #155, Palmetto, FL 34221 owned by COLONIAL MANOR MHC HOLDINGS, LLC.

7. In accepting the rental agreement, Defendant, JEANIE GRACE DICICCO accepted and agreed to be bound by the Prospectus and Rules and Regulations of COLONIAL MANOR MHC HOLDINGS, LLC.

8. Defendant, HOWARD VINCENT BLACKWELL, entered into a rental agreement to reside at 900 9th Avenue East, Lot #155, Palmetto, FL 34221 owned by COLONIAL MANOR MHC HOLDINGS, LLC.

9. In accepting the rental agreement, Defendant, HOWARD VINCENT BLACKWELL accepted and agreed to be bound by the Prospectus and Rules and Regulations of COLONIAL MANOR MHC HOLDINGS, LLC.

10. Defendant(s), ANY UNKNOWN TENANT(s), may reside on the real property at 900 9th Avenue East, Lot #155, Palmetto, Manatee County, FL 34221, Manatee County, but if so, does without the consent of the Plaintiff.

11. The Defendant, IRIS WILLIAMS, has violated the Rules and Regulations of COLONIAL MANOR MHC HOLDINGS, LLC, specifically, Rule 3, pertaining to allowing an unapproved occupant/invitee to reside in Lot 155 of Colonial Manor, more specifically, a minor child. A copy of the Rules and Regulations of the Plaintiff are attached to this Complaint as Plaintiff's Exhibit A.

12. The Defendant, IRIS WILLIAMS, has also violated the Rules and Regulations of COLONIAL MANOR MHC HOLDINGS, LLC, specifically, Rule 6, pertaining to permitting a dog to be in the premises of Lot 155.

13. The Defendant, IRIS WILLIAMS, has also violated the Rules and Regulations of COLONIAL MANOR MHC HOLDINGS, LLC, specifically, Rule 7, pertaining to the use of the covered driveway and the exterior of Lot 155 for storage of multiple items, including, without limitation, bicycles and bicycle parts, a trailer, stacked outdoor furniture, a tricycle, a chalk or hard board, a cat play area and cat feeding equipment.

14. On May 18, 2022, the Defendant, IRIS WILLIAMS, was notified by certified mail, return receipt requested, and by posting, that she violated Rules 3, 6 and 7 (Rule Prohibiting Unapproved Occupancy, Rule Prohibiting Pets and Rule Requiring Lot and Home Maintenance and Prohibiting Storage) and pursuant to that notice was provided seven (7) days to correct all of the violations by removing the child from the premises, removing the pet from the premises, and removing bicycles and bicycle parts, a trailer, stacked outdoor furniture, a tricycle, a chalk or hard board, a cat play area and cat feeding equipment from the exterior of the premises of lot 155. A copy of the notice and certified proof of mailing are attached to this Complaint as Plaintiff's Exhibit B.

15. On May 18, 2022, Exhibit B was also posted on 900 9th Avenue East, Lot #155, Palmetto, Manatee County, FL 34221 pursuant to Fla. Stat. §723.061.

16. After providing more than the seven days of notice set forth pursuant to Fla. Stat. §723.061 to cure the violations described in paragraphs 11, 12 and 13, Defendant IRIS WILLIAMS did not cure the violations of Rules 3, 6 and 7 of the Rules and Regulations of COLONIAL MANOR MHC HOLDINGS, LLC.

17. As a result, on June 1, 2022 Plaintiff posted on the premises and sent by Certified

Mail Return Receipt Requested, a notice of termination of the Defendant IRIS WILLIAM'S right to reside on the premises, granting her 30 days to vacate the premises of 900 9th Avenue East, Palmetto, FL 34221, lot 155. A copy of the Notice of Termination of Tenancy and proof of certified mail are attached hereto as Plaintiff's Exhibit C.

18. Plaintiff also posted Exhibit C on the premises of Defendants on June 1, 2022.

19. As of the date of the filing of this Complaint, the Defendant, IRIS WILLIAMS, has not complied with the Rules and Regulations of COLONIAL MANOR Rules 3,6 and 7 by refusing to remove the unapproved tenant, keeping a pet and failing to maintain the lot and premises.

20. Defendant, IRIS WILLIAMS, is a tenant at sufferance by virtue of failing to vacate the premises and owes the Plaintiff double rent for such time as she fails to vacate the premises.

21. The Defendant, JEANNIE GRACE DICICCO, has violated the Rules and Regulations of COLONIAL MANOR MHC HOLDINGS, LLC, specifically, Rule 3, pertaining to allowing an unapproved occupant/invitee to reside in Lot 155 of Colonial Manor, specifically a minor child. A copy of the Rules and Regulations of the Plaintiff are attached to this Complaint as Plaintiff's Exhibit A.

22. The Defendant, IRIS WILLIAMS, has also violated the Rules and Regulations of COLONIAL MANOR, more specifically, Rule 6, pertaining to permitting a dog to be in the premises of Lot 155.

23. The Defendant, JEANIE GRACE DICICCO, has also violated the Rules and Regulations of COLONIAL MANOR, specifically, Rule 7, pertaining to the use of the covered driveway and the exterior of Lot 155 for storage of multiple items, including, without limitation, bicycles and bicycle parts, a trailer, stacked outdoor furniture, a tricycle, a chalk or hard board, a cat play area and cat feeding equipment.

24. On May 18, 2022, the Defendant, JEANIE GRACE DICICCO, was notified by

certified mail, return receipt requested, and by posting, that she was in violation of Rules 3, 6 and 7 (Rule Prohibiting Unapproved Occupancy, Rule Prohibiting Pets and Rule Requiring Lot and Home Maintenance and Prohibiting Storage) and pursuant to that notice was provided seven (7) days to correct all of the violations by removing the child from the premises, removing the pet from the premises, and removing bicycles and bicycle parts, a trailer, stacked outdoor furniture, a tricycle, a chalk or hard board, a cat play area and cat feeding equipment from the exterior of the premises of lot 155. A copy of the notice and certified proof of mailing are attached to this Complaint as Plaintiff's Exhibit B.

25. On May 18, 2022, Exhibit B was also posted on 900 9th Avenue East, Lot #155, Palmetto, Manatee County, FL 34221 pursuant to Fla. Stat. §723.061.

26. After providing more than the seven days of notice set forth pursuant to Fla. Stat. §723.061 to cure the violations described in paragraphs 11, 12 and 13, Defendant did not cure the violations of Rules 3, 6 and 7 of the Rules and Regulations of COLONIAL MANOR MHC HOLDINGS, LLC.

27. As a result, on June 1, 2022 Plaintiff posted on the premises and sent by Certified Mail Return Receipt Requested, a notice of termination of the Defendants' right to reside on the premises, granting her 30 days to vacate the premises of 900 9th Avenue East, Palmetto, FL 34221, lot 155. A copy of the Notice of Termination of Tenancy and proof of certified mail are attached hereto as Plaintiff's Exhibit C.

28. Plaintiff also posted Exhibit C on the premises of Defendant on June 1, 2022.

29. As of the date of the filing of this Complaint, the Defendant, JEANIE GRACE DICICCO, has not complied with the Rules and Regulations of COLONIAL MANOR Rules 3,6 and 7 by refusing to remove the unapproved tenants, keeping a pet and failing to maintain the lot and premises.

30. Defendant, JEANIE GRACE DICICCO, is a tenant at sufferance by virtue of failing to vacate the premises and owes the Plaintiff double rent for such time as she fails to vacate the premises.

31. Defendant, HOWARD VINCENT BLACKWELL, has violated the Rules and Regulations of COLONIAL MANOR, more specifically, Rule 3, pertaining to allowing an unapproved occupant/invitee to reside in Lot 155 of Colonial Manor, specifically a minor child. A copy of the Rules and Regulations of the Plaintiff are attached to this Complaint as Plaintiff's Exhibit A.

32. The Defendant, HOWARD VINCENT BLACKWELL, has also violated the Rules and Regulations of COLONIAL MANOR, more specifically, Rule 6, pertaining to permitting a dog to be in the premises of Lot 155.

33. The Defendant, HOWARD VINCENT BLACKWELL, has also violated the Rules and Regulations of COLONIAL MANOR, specifically, Rule 7, pertaining to the use of the covered driveway and the exterior of Lot 155 for storage of multiple items, including, without limitation, bicycles and bicycle parts, a trailer, stacked outdoor furniture, a tricycle, a chalk or hard board, a cat play area and cat feeding equipment.

34. On May 18, 2022, the Defendant, HOWARD VINCENT BLACKWELL, was notified by certified mail, return receipt requested, and by posting, that she was in violation of Rules 3, 6 and 7 (Rule Prohibiting Unapproved Occupancy, Rule Prohibiting Pets and Rule Requiring Lot and Home Maintenance and Prohibiting Storage) and pursuant to that notice was provided seven (7) days to correct all of the violations by removing the child from the premises, removing the pet from the premises, and removing bicycles and bicycle parts, a trailer, stacked outdoor furniture, a tricycle, a chalk or hard board, a cat play area and cat feeding equipment from the exterior of the premises of lot 155. A copy of the notice and certified proof of mailing are

attached to this Complaint as Plaintiff's Exhibit B.

35. On May 18, 2022, Exhibit B was also posted on 900 9th Avenue East, Lot #155, Palmetto, Manatee County, FL 34221 pursuant to Fla. Stat. §723.061.

36. After providing more than the seven days of notice set forth pursuant to Fla. Stat. §723.061 to cure the violations described in paragraphs 11, 12 and 13, Defendant did not cure the violations of Rules 3, 6 and 7 of the Rules and Regulations of COLONIAL MANOR MHC HOLDINGS, LLC.

37. As a result, on June 1, 2022 Plaintiff posted on the premises and sent by Certified Mail Return Receipt Requested, a notice of termination of the Defendant's right to reside on the premises, granting him 30 days to vacate the premises of 900 9th Avenue East, Palmetto, FL 34221, lot 155. A copy of the Notice of Termination of Tenancy and proof of certified mail are attached hereto as Plaintiff's Exhibit C.

38. Plaintiff also posted Exhibit C on the premises of Defendants on June 1, 2022.

39. As of the date of the filing of this Complaint, the Defendant, , has not complied with the Rules and Regulations of COLONIAL MANOR Rules 3,6 or 7 by refusing to remove the unapproved tenants, keeping a pet and failing to maintain the lot and premises.

40. Defendant, HOWARD VINCENT BLACKWELL, is a tenant at sufferance by virtue of failing to vacate the premises and owes the Plaintiff double rent for such time as she fails to vacate the premises.

41. The Defendant, HOWARD VINCENT BLACKWELL, has violated the Rules and Regulations of COLONIAL MANOR, more specifically, Rule 3, pertaining to allowing an unapproved occupant/invitee to reside in Lot 155 of Colonial Manor, specifically a minor child. A copy of the Rules and Regulations of the Plaintiff are attached to this Complaint as Plaintiff's Exhibit A.

42. The Defendant, HOWARD VINCENT BLACKWELL, has also violated the Rules and Regulations of COLONIAL MANOR, more specifically, Rule 6, pertaining to permitting a dog to be in the premises of Lot 155.

43. The Defendant, HOWARD VINCENT BLACKWELL, has also violated the Rules and Regulations of COLONIAL MANOR, specifically, Rule 7, pertaining to the use of the covered driveway and the exterior of Lot 155 for storage of multiple items, including, without limitation, bicycles and bicycle parts, a trailer, stacked outdoor furniture, a tricycle, a chalk or hard board, a cat play area and cat feeding equipment.

44. On May 18, 2022, the Defendant, HOWARD VINCENT BLACKWELL, was notified by certified mail, return receipt requested, and by posting, that she was in violation of Rules 3, 6 and 7 (Rule Prohibiting Unapproved Occupancy, Rule Prohibiting Pets and Rule Requiring Lot and Home Maintenance and Prohibiting Storage) and pursuant to that notice was provided seven (7) days to correct all of the violations by removing the child from the premises, removing the pet from the premises, and removing bicycles and bicycle parts, a trailer, stacked outdoor furniture, a tricycle, a chalk or hard board, a cat play area and cat feeding equipment from the exterior of the premises of lot 155. A copy of the notice and certified proof of mailing are attached to this Complaint as Plaintiff's Exhibit B.

45. On May 18, 2022, Exhibit B was also posted on 900 9th Avenue East, Lot #155, Palmetto, Manatee County, FL 34221 pursuant to Fla. Stat. §723.061.

46. After providing more than the seven days of notice set forth pursuant to Fla. Stat. §723.061 to cure the violations described in paragraphs 11, 12 and 13, Defendant did not cure the violations of Rules 3, 6 and 7 of the Rules and Regulations of COLONIAL MANOR MHC HOLDINGS, LLC.

47. As a result, on June 1, 2022 Plaintiff posted on the premises and sent by Certified

Mail Return Receipt Requested, a notice of termination of the Defendants' right to reside on the premises, granting her 30 days to vacate the premises of 900 9th Avenue East, Palmetto, FL 34221, lot 155. A copy of the Notice of Termination of Tenancy and proof of certified mail are attached hereto as Plaintiff's Exhibit C.

48. Plaintiff has not accepted rent since the date that the Defendant failed to correct violations of park rules and regulations as stated herein.

49. Pursuant to Section 723.068 of Florida Statutes, Plaintiff is entitled to an award of costs and attorney fees arising out of the action.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment for possession of the premises together with costs and reasonable attorney's fees against Defendants, IRIS WILLIAMS, JEANIE GRACE DICICCO, HOWARD VINCENT BLACKWELL, AND ANY UNKNOWN TENANT(S), and such other and further relief as the Court may deem proper.

COUNT II
ACTION FOR DAMAGES (RENTAL)

50. This is an action seeking less than \$15,000.00 excluding costs, interest and attorney fees.

51. Plaintiff re-alleges the facts contained within paragraphs 1 through 9 and 11 through 49 as though fully set forth herein.

52. Plaintiff, as landlord, leased to Defendant, IRIS WILLIAMS, JEANIE GRACE DICICCO and HOWARD VINCENT BLACKWELL, Lot 155, 900 9th Avenue East, Palmetto, FL 34221 of the above stated mobile home park at a monthly rental fee of \$663.50.

53. Plaintiff has suffered damages for unpaid and double rent, court costs and a reasonable attorney fee arising out of the prosecution of this action.

54. Plaintiff has retained the undersigned counsel to represent it in this action and has agreed to pay it a reasonable fee for its services.

LAW OFFICE OF WILLIAM C. PRICE, III, P.A.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment against Defendant, IRIS WILLIAMS, JEANIE GRACE DICICCO and HOWARD VINCENT BLACKWELL for damages, costs, and attorney fees.

COUNT III

ACTION TO ENFORCE LANDLORD'S LIEN

55. This is an action seeking to enforce a landlord's lien pursuant to Sections 713.691 and 713.77 of Florida Statutes.

56. The Plaintiff re-alleges the facts contained within paragraphs 1 through 54 excluding paragraph 10 as though fully set forth herein.

57. Defendant, IRIS WILLIAMS, is the registered owner of a 1977 HOMETTE CORPORATION double wide mobile home, VIN 365291AL, Title No. 15296206 and VIN 0365291BL, Title No. 0015296207, located on Lot #155 of the property leased by the Plaintiff to the Defendant.

58. Upon the Plaintiff being determined to be entitled to judgment for possession of the premises in this Complaint, Plaintiff is entitled to a landlord's lien against said mobile home to enforce its judgment against Defendant for any unpaid rent, utility bills, late fees, and damage to the real property caused by the Defendant, plus court costs and a reasonable attorney's fee for the pursuit of this eviction and for related relief.

59. The Plaintiff claims entitlement to enforce its lien against said mobile home by judicial sale pursuant to Florida Statute §45.031.

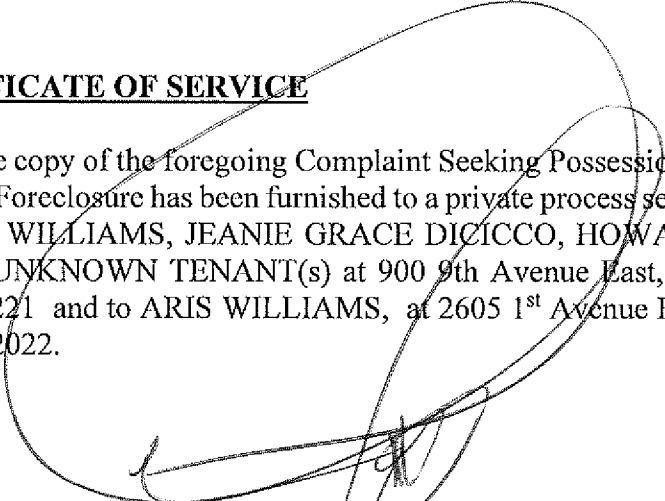
60. The Plaintiff is entitled to credit toward the purchase of said mobile home in the sum representing all of Plaintiff's judgment against the Defendants, IRIS WILLIAMS, JEANIE

GRACE DICICCO and HOWARD VINCENT BLACKWELL, all costs of this proceeding and reasonable attorney's fees.

WHEREFORE, the Plaintiff prays this Honorable Court enter an order, ordering a judicial sale of the mobile home identified herein pursuant to Florida Statute §45.031 to occur between thirty (30) and forty-five (45) days after the rendition of judgment for possession and damages in the above-styled cause, and to grant the Plaintiff a credit toward the purchase of the mobile home representing the unpaid balance of the Plaintiff's judgment against Defendants, plus any costs expended by it for obtaining the judicial sale and a reasonable attorney's fee.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Complaint Seeking Possession of Residential Premises, Damages and Lien Foreclosure has been furnished to a private process server for service upon the Defendant(s), IRIS WILLIAMS, JEANIE GRACE DICICCO, HOWARD VINCENT BLACKWELL, and ANY UNKNOWN TENANT(s) at 900 9th Avenue East, Lot #155, Palmetto, Manatee County, FL 34221 and to ARIS WILLIAMS, at 2605 1st Avenue East, Palmetto, FL 34221 on 13th day of July, 2022.



William C. Price, III, Esquire
Florida Bar No. 0333824
WILLIAM C. PRICE, III, P.A.
522 Twelfth Street West
Bradenton, Florida 34205
Telephone: (941) 747-8001
Facsimile: (941) 747-3730
Pleadings@wcpricelaw.com
Attorney for the Plaintiff